

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On February 22, 2023, a complaint was filed by A.A.A. (*the complainant) with this Spanish Agency for Data Protection against whom they identify as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

(...) the respondent is responsible for a video surveillance camera installed in their home, which is oriented towards the public road, without prior administrative authorization for this (...)—page no. X--.

It is noted that the respondent provided two recordings from this system to a judicial proceeding.

As documentary evidence, a copy of the complaint filed by the respondent with the General Directorate of Police on 10/17/21 is submitted, in which they reported events captured by the video surveillance camera installed on their property that affected a vehicle parked in the vicinity of their home.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was duly forwarded to the respondent in a timely manner, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

THIRD: On April 17, 2023, a written response from the respondent regarding the facts subject to transfer was received by this agency.

"I am the responsible party for the system, whose details appear in the header of this request; I have installed the cameras in the terrace area of my home.

The number of cameras is two, although only one of them is operational, as the other is damaged and has been placed only as a deterrent.

The retention period for the images is six days, on a 32GB micro SD memory card within the camera itself, which is provided as document no. X, with the days indicated in orange.

The main reason for the installation was for security purposes.

I would like to inform you that this party understands that a third party has made the request, as there are ongoing procedures XXXXXXXX related to damages caused to my property (...)"

Documentary evidence is provided that certifies the presence of an informative sign indicating that it is a area complete in its main sections.

FOURTH: On May 25, 2023, a Resolution from the Director of this AEPD was issued ordering the ARCHIVING of procedure AT/01153/2023, considering that from the facts presented, no administrative infringement was observed in the matter at hand.

This was duly notified to the complainant in a timely manner, as evidenced in the information system of this Agency.

FIFTH: On June 30, 2023, a document classified as was submitted by Ms. C.C.C., on behalf of Ms. A.A.A.

"In this case, Mr. B.B.B. XXXXXXXXXXXX a video surveillance system that focuses 50% on his property and the other 50% almost entirely on the public road (...).

Moreover, Mr. B.B.B. lacks the legitimacy to use such capturing systems according to Articles 5, 6, and Article 45 of the GDPR.

There is no reason justifying that Mr. B.B.B. has installed a video surveillance system that has been active and recording within the residential area for more than two years, without his own statement being sufficient to undermine the excess and disproportion of such a measure.

Lack of administrative authorization. The Town Hall of Adeje has issued a certificate stating that no administrative authorization has been granted to Mr. Moreno to install video surveillance systems that capture the public road.

Regarding the informative sign. The informative sign has not been placed since the installation of the video surveillance system. In the event that it has been placed now, it also does not reference who is

handling such data and how to access it, thus there is a non-compliance with the regulations in this regard.

Therefore, in view of such disproportion in the video surveillance system installed on the property (...) and in light of the ignorance of the processing of such data (...) we request the NULLIFICATION of the resolution and the review of the complaint submitted by this party."

SIXTH: On November 2, 2023, a Resolution was issued by this Agency in the following terms:

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TO ESTIMATE the appeal for reconsideration filed by A.A.A. against the resolution of this Agency issued on May 25, 2023, which agreed to archive the complaint referred to B.B.B., in order for it to continue its processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The facts arise from the complaint dated 02/22/23, through which the presence of cameras installed by the neighbor of the complainant was reported, allegedly affecting public space, providing a copy of a complaint filed with the Security Forces on 10/17/21.

It should be noted that these facts were subject to adjudication in the Court of Instruction No. 3 (Former Mixed No. 8) within the framework of PA XXXXXXXXXX.

This Agency has extensively addressed the vandalistic acts committed against third-party property, positioning itself against them in any of their forms, considering video surveillance an appropriate means for determining the alleged author of damages that are committed furtively under the belief that there will be no repercussions.

On occasions, the temporary installation of hidden cameras has been allowed for the purpose of capturing images that would clarify the facts, under the premise that the images would be made available to the State Security Forces or the nearest investigating judge to the location of the events. In accordance with the Jurisprudence of the TS (Supreme Court), it is accepted that video recordings can be submitted as evidence, provided that they do not invade spaces reserved for individuals.

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The main reason for obtaining images is justified by property damage caused to the vehicle owned by the respondent, parked in a public area, resulting in the images provided in court showing that the main authors are now the complainants in this Agency, who obtained the images of such acts from what was submitted in court.

Furthermore, the installation of such devices may be an appropriate measure in light of the recurrence of damage to others' property (e.g., the respondent's vehicle), committed surreptitiously with the intent

to cause harm based on poor neighborly relations in most cases.

Article 263 of the Penal Code states: "Whoever causes damage to another's property not covered by other titles of this Code shall be punished with a fine of six to twenty-four months, taking into account the economic condition of the victim and the amount of the damage."

Article 65.6 of Organic Law 3/2018, December 5 states:

"After admission for processing, if the person responsible or in charge of the processing demonstrates that they have adopted measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve to archive the complaint when specific circumstances advise the adoption of other more moderate or alternative solutions to corrective action, provided that no prior investigative actions or any of the procedures regulated in this organic law have been initiated."

To this end, it should be noted that during the judicial instruction phase, the Security Forces - National Police were ordered to go to the scene of the events, where B.B.B. (*the respondent) stated that on October 17, 2021, thanks to a video surveillance system installed in his property located at Calle ***DIRECCIÓN.1 in Adeje, he was able to record A.A.A. and D.D.D. causing various damages to his vehicle "Nissan Juke" with license plate "XXXXXXX."

It has been confirmed that, once the corresponding complaint was filed by the respondent, he proceeded to reorient the camera from its original location, which determines the temporary nature of the measure adopted.

Therefore, there are no fundamental rights of an absolute nature since they can be restricted or limited during the course of a criminal procedural investigation.

Thus, as the Constitutional Court points out in its Order 103/82, of March 3, such rights may be subject to restrictions, of greater or lesser extent, provided that they are carried out in compliance with the requirements of the principle of legality, judicial authorization, and the principle of proportionality.

There is no issue with the admissibility of video recordings made by a private individual in public spaces as it ultimately does not cease to be a

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documentary evidence in videographic format which, along with the testimony of its author, constitutes a set of evidence of special effectiveness that will be freely assessed by the competent Judge or Tribunal.

The Judgment of the Supreme Court (Criminal Chamber) No.: 793/2013, of October 28:

"The conclusion regarding the legality or exclusion of that evidence can only be the logical outcome of a rigorous weighing of the rights to privacy and to one's own image against the possible existence of a legitimate purpose, always considering the principles of proportionality, necessity, and rationality. Only then, after making explicit the reasons and criteria that have guided the weighing task, will one be in a position to proclaim the legitimacy of the sacrifice of those rights or, on the contrary, their exclusion as a source of evidence due to their irreparable illegality."

For all these reasons, we must start from the premise that videographic evidence meets all the requirements from the perspective of fundamental rights to and to one's own , since otherwise, it could not be considered as evidence - article 11.2 LOPJ and 287 L.E.C--.

III

Legality of Processing

The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

IV

Conclusion

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Therefore, based on the indications in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, as the temporary measure adopted by the respondent is considered appropriate to substantiate the alleged commission of a criminal offense.

As doctrine points out, the essential objective of the installation of video cameras is the prevention of crime, with the images obtained from the recordings being capable of becoming documentary evidence in criminal proceedings, especially if, as stated, the claimant's vehicle was subject to repeated attacks.

The adopted measure (reorientation of the cameras) must be, in any case, temporary, proportional to the pursued purpose, and of minimal impact on the rights of third parties, under the premise of providing the images to the competent authorities in the matter.

Finally, this body is not competent to assess the legality or otherwise of evidence presented in criminal judicial proceedings, whose free assessment corresponds to the competent Investigating Judge, who will be the one to rule on the matter.

In accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to Mr. B.B.B..

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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